

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 14, 2026
8:30 a.m./1:30 p.m.

10. Stephen Cass v. Pamela Cass

24FL0586

Petitioner filed a Request for Order (RFO) on February 19, 2026, requesting a modification of temporary spousal support. Petitioner concurrently filed an Income and Expense Declaration. Proof of Service shows Respondent was only served with the RFO and not the other required documents.

Respondent filed a Responsive Declaration as well as an Income and Expense Declaration on May 1, 2026. Petitioner was served the same day. Respondent objects to the court modifying the current orders as Respondent was not properly served with all the required documents.

“For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Petitioner failed to comply with the Rule of Court as well as the local rule. The court denies Petitioner’s request to modify temporary guideline spousal support.

The court find the parties are currently set for trial on all issues set to commence September 8, 2026. The court adds spousal support as an issue and continued to reserve jurisdiction to retroactively modify spousal support to August 28, 2024.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: “FOR ALL HEARINGS INVOLVING CHILD, SPOUSAL, OR DOMESTIC PARTNER SUPPORT, BOTH PARTIES MUST COMPLETE, FILE, AND SERVE A CURRENT INCOME AND EXPENSE DECLARATION.” CAL. RULE CT. 5.260(1); SEE ALSO CAL. FAM. CODE §2100. THE PARTY REQUESTING SUPPORT SHALL FILE AND SERVE THEIR INCOME AND EXPENSE DECLARATION WITH THE INITIAL MOVING PAPERS. EL DORADO SUP. CT. RULE 8.03.01. PETITIONER FAILED TO COMPLY WITH THE RULE OF COURT AS WELL AS THE LOCAL RULE. THE COURT DENIES PETITIONER’S REQUEST TO MODIFY TEMPORARY GUIDELINE SPOUSAL SUPPORT.

THE COURT FIND THE PARTIES ARE CURRENTLY SET FOR TRIAL ON ALL ISSUES SET TO COMMENCE SEPTEMBER 8, 2026. THE COURT ADDS SPOUSAL SUPPORT AS AN

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ISSUE AND CONTINUED TO RESERVE JURISDICTION TO RETROACTIVELY MODIFY SPOUSAL SUPPORT TO AUGUST 28, 2024.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.